

Sugar of a polarisation exceeding—						Cwt.	6TH SCH. —cont.
91 degrees but not exceeding 92 degrees	-	-	-	-	-	77.6	
90 " " " 91 "	-	-	-	-	-	75.2	
89 " " " 90 "	-	-	-	-	-	72.8	
88 " " " 89 "	-	-	-	-	-	70.4	
87 " " " 88 "	-	-	-	-	-	68.4	
86 " " " 87 "	-	-	-	-	-	66.4	
85 " " " 86 "	-	-	-	-	-	64.6	
84 " " " 85 "	-	-	-	-	-	62.8	
83 " " " 84 "	-	-	-	-	-	61.0	
82 " " " 83 "	-	-	-	-	-	59.2	
81 " " " 82 "	-	-	-	-	-	57.6	
80 " " " 81 "	-	-	-	-	-	56.0	
79 " " " 80 "	-	-	-	-	-	54.4	
78 " " " 79 "	-	-	-	-	-	52.8	
77 " " " 78 "	-	-	-	-	-	51.2	
76 " " " 77 "	-	-	-	-	-	49.6	

CHAPTER 19.

An Act to authorise the Treasury to make an agreement with a company to be incorporated by the name of the Special Areas Reconstruction Association Limited and to make payments to the company in accordance with that agreement; and for purposes connected with the matters aforesaid. [29th May 1936.]

WHEREAS it is intended that a company should be incorporated under the Companies Act, 1929, by the name of the Special Areas Reconstruction Association Limited (hereinafter referred to as "the company") with the object (among other objects) of providing as a temporary and special expedient a means of affording financial facilities to persons setting up or carrying on business in the areas specified in the First Schedule to the Special Areas (Development and Improvement) Act, 1934, who satisfy the company that, whilst having reasonable expectation of ultimate success on an economic basis, they are not for the time being in a position to obtain financial facilities from banks or financial institutions primarily engaged in providing financial facilities for long or medium term periods :

19 & 20
Geo. 5. c. 23.

25 & 26
Geo. 5. c. 1.

And whereas it is expedient to give assistance to the company in carrying out the said objects :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power of
Treasury to
enter into
and make
payments
under an
agreement.

1.—(1) If the company is so incorporated as aforesaid in accordance with arrangements approved by the Treasury, the Treasury may enter into an agreement with the company providing for the matters set out in the Schedule to this Act and, subject to the provisions of this section, may modify the said agreement by any further agreement with the company.

(2) In the event of the capital of the company being increased with the written consent of the Treasury, the provisions of the said agreement made in accordance with paragraphs 5 and 6 of the Schedule to this Act may be modified by a further agreement in such manner as may be expedient having regard to the increase of capital, but save as aforesaid no modifications shall be made in the said agreement which are inconsistent with the provisions of the said Schedule.

(3) The Treasury shall, as soon as may be, lay before Parliament a copy of the said agreement and of any further agreement by which it is modified.

(4) Any sums required by the Treasury for making the annual payments specified in paragraph 2 of the said Schedule shall be defrayed out of moneys provided by Parliament, and any sums required by the Treasury for making the other payments specified in the said Schedule shall be charged on and issued out of the Consolidated Fund of the United Kingdom or the growing produce thereof, and any sums received by the Treasury under the said agreement shall be paid into the Exchequer.

Exclusion of
63 & 64 Vict.
c. 51 and
17 & 18
Geo. 5. c. 21.

2. If the company is so incorporated as aforesaid in accordance with arrangements approved by the Treasury, the Board of Trade shall make an order under section six of the Moneylenders Act, 1900, exempting the company from that Act and the Moneylenders Act, 1927.

Short title.

3. This Act may be cited as the Special Areas Reconstruction (Agreement) Act, 1936.

SCHEDULE.

MATTERS TO BE PROVIDED FOR IN AN AGREEMENT BETWEEN THE TREASURY AND THE SPECIAL AREAS RECONSTRUCTION ASSOCIATION LIMITED.

1. The payment by the Treasury of the preliminary expenses of the company and of the costs and expenses of and incidental to the winding up of the company.

2. The payment by the Treasury to the company in respect of every year of the amount expended by the company in administration expenses in respect of that year, or of a contribution of twenty thousand pounds towards those expenses, whichever is the less.

3. The setting aside by the company of reserves against losses, and the payment by the Treasury, as a contribution to those reserves, of sums equal to the amounts from time to time lent by the company after the making of the agreement, up to a limit of one hundred thousand pounds.

4. The payment by the Treasury to the company upon the winding up of the company—

(a) in respect of the first million pounds lent by the company after the making of the agreement (hereinafter referred to as “the company’s first loans”); and

(b) in respect of any amount lent by the company after, and in addition to, the company’s first loans (hereinafter referred to as “the company’s additional loans”);

of sums equal to the amount, if any, by which the losses of capital attributable respectively to the company’s first loans or to the company’s additional loans (as the case may be) exceed the amount of the reserves mentioned in paragraph 3 of this Schedule which is available to meet those losses respectively so, however, that the sum payable by the Treasury in accordance with the provisions of this paragraph in respect of the company’s first loans and the sum so payable in respect of the company’s additional loans shall neither of them exceed one quarter of the amount of the loans in respect of which it is payable.

5. The payment to the Treasury upon the winding up of the company, by way of refund of the sums paid by the Treasury in accordance with paragraph 3 of this Schedule, of a sum

not exceeding one hundred thousand pounds, out of the amount, if any, by which the assets of the company remaining after the discharge of the liabilities of the company exceed the amount paid-up on the first one million pounds of the share capital of the company.

6. The repayment to the Treasury upon the winding up of the company of any sums paid by them in accordance with the provisions of paragraph 1 of this Schedule out of the amount, if any, of the assets of the company remaining after—

- (a) the discharge of the company's liabilities;
- (b) the payment of any sums due to the Treasury in accordance with the provisions of the last foregoing paragraph of this Schedule;
- (c) the repayment of the amount paid-up on the first one million pounds of the share capital of the company including any arrears of dividend payable to the holders of not more than nine hundred thousand redeemable three and a half per cent. cumulative preference one pound shares of the company; and
- (d) the payment to the holders of not more than one hundred thousand ordinary one pound shares of the company of such sums as, together with the amount of the dividends previously received by them in respect of those shares, are equal to simple interest at three per cent. per annum on the sums from time to time paid up by them respectively in respect of those shares, from the dates on which those sums were so paid up until the date of the commencement of the winding up of the company.

7. The certification, in such manner as may be approved by the Treasury, of the amounts of the payments to be made by and to the Treasury under the agreement.

8. The cessation of the liability of the Treasury to make further payments under the agreement in the event of there being made, without the written consent of the Treasury, any alteration in the memorandum and articles of association of the company which, in the opinion of the Treasury, affects the matters specified in the foregoing provisions of this Schedule.

9. Such additional, consequential, or supplementary matters as appear to the Treasury and to the company to be necessary or expedient.
